Department of Taxation and Finance

General Business Corporation Franchise Tax Return

Tax Law – Article 9-A

CT-3

Caution: This form must be used **only** for tax periods beginning on or after January 1, 2025. If you use it for any prior periods, the return will **not** be processed and will **not** be considered timely filed. As a result, penalties and interest may be incurred.

See instructions, Form CT-3-I, before completing return.

All filers must enter tax period:

Final return ☐ **Amended return** ☐ beginning ☐ ending ☐

Employer identification number (EIN)	File number	Business telephone number ( )	If you claim an overpayment, mark an ***X*** in the box ☐
Legal name of corporation		Trade name/DBA	
Mailing address Care of (c/o)		State or country of incorporation	
Number and street or PO Box		Date of incorporation	**Foreign corporations:** date began business in NYS
City / U.S. state/Canadian province / ZIP/Postal code		Country *(if not United States)*	*For office use only*
Principal business activity in NYS		NAICS business code number *(from **NYS Pub 910**)*	

If you need to update your address or phone information for corporation tax, or other tax types, you can do so online. See *Business information* in Form CT-1.

A. Pay amount shown on Part 2, line 19c. Make payable to: ***New York State Corporation Tax***
Attach your payment here. *(Detach all check stubs; see instructions for details.)* **A** Payment enclosed

B. Are you subject to the metropolitan transportation business tax (MTA surcharge)? *(see instructions; mark an **X** in the appropriate box)* ..... **B** Yes ☐ No ☐

C. If you are disclaiming tax liability in New York State based on Public Law 86-272, mark an ***X*** in the box *(see instructions)* ..... **C** ☐

D. Do you have an interest in any partnerships? *(mark an **X** in the appropriate box)* ..... **D** Yes ☐ No ☐
If *Yes*, enter the name(s) and EIN(s) on Form CT-60 and file it with your return.

Third – party designee *(see instructions)*	Yes ☐ No ☐	Designee's name *(print)*	Designee's phone number ( )
	Designee's email address		PIN

Certification: I certify that this return and any attachments are to the best of my knowledge and belief true, correct, and complete.

Authorized person	Printed name of authorized person	Signature of authorized person	Official title
	Email address of authorized person	Telephone number ( )	Date

Paid preparer use only *(see instr.)*	Firm's name *(or yours if self-employed)*	Firm's EIN	Preparer's PTIN or SSN
	Signature of individual preparing this return	Address / City / State / ZIP code	
	Email address of individual preparing this return	Preparer's NYTPRIN or Excl. code	Date

See instructions for where to file.

Content of Form CT-3

Part 1 – General corporate information	Part 5 – Calculation of investment capital for the current tax year
Part 2 – Calculation of balance due or overpayment	Part 6 – Calculation of business apportionment factor
Part 3 – Calculation of tax on business income base	Part 7 – Summary of tax credits claimed
Part 4 – Calculation of tax on capital base	

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Part 1 – General corporate information

Section A – Qualification for preferential tax rates – If you are a corporation as identified in this section and qualify for preferential tax rates, mark an ***X*** in the boxes that apply to you *(see instructions)*.

1 A qualified emerging technology company (QETC) eligible for the lower business income base tax rate, 0% capital base tax rate, and lower fixed dollar minimum tax amounts ..... ● **1** ☐

2 A qualified New York manufacturer based on the principally engaged test eligible for the 0% business income base tax rate and lower fixed dollar minimum tax amounts ..... ● **2** ☐

3 A qualified New York manufacturer based on the principally engaged test eligible for the 0% capital base tax rate ..... ● **3** ☐

4 A qualified New York manufacturer based on the significant employment and property test eligible for the 0% business income base tax rate, 0% capital base tax rate, and lower fixed dollar minimum tax amounts ..... ● **4** ☐

5 A cooperative housing corporation eligible for the 0% capital base tax rate ..... ● **5** ☐

6 A small business taxpayer eligible for the 0% capital base tax rate ..... ● **6** ☐
If you marked this box, complete line 6a below and Section B, line 1.

6a Total capital contributions ..... ● **6a** ☐

7 A qualified entity of a New York State innovation hot spot that operates solely within such New York State innovation hot spot, and you have elected to be subject only to the fixed dollar minimum tax base ..... ● **7** ☐

Section B – New York State information *(see instructions)*

1 Number of New York State employees ..... ● **1** ☐

2 Wages paid to New York State employees ..... ● **2** ☐

3 Number of business establishments in New York State ..... ● **3** ☐

4 If you have an interest in, or have rented, real property in New York State, mark an ***X*** in the box ..... ● **4** ☐

5 If you are claiming an exception to the related member expense addback under § 208.9(o)(2)(B), mark an ***X*** in the box ..... ● **5** ☐

5a If you marked the line 5 box, use line 5a to report the applicable exception number (1-4) and the amount of royalty payments ..... **5a** ● Number ☐ ● Amount ☐

6 If you are not protected by Public Law 86-272 and are subject to tax **solely** as a result of deriving receipts in New York State, mark an ***X*** in the box ..... ● **6** ☐

Section C – Filing information

1 **Federal return filed –** you must mark an ***X*** in one box and attach a complete copy of your federal return

1120 ● ☐ 1120 consolidated ● ☐ 1120-REIT or 1120-RIC ☐ 1120S ● ☐ 1120F ● ☐ 1120-H ☐

2 **Amended return –** If you marked the amended return box on page 1, mark an ***X*** in the applicable box(es) and attach documentation:

Failure to meet investment capital holding period ● ☐

Final federal determination ● ☐ ● Date of determination ☐ NOL carryback ● ☐ Capital loss carryback ... ● ☐ 1139 ● ☐ 1120X ● ☐

2a Enter the tax due amount from your most recently filed New York State return for this tax period ● **2a** ☐

3 **Required attachments –** For all forms, other than tax credit claim forms, that are filed with this return, mark an ***X*** in the applicable box(es)

CT-3.1 ● ☐ CT-3.2 ● ☐ CT-3.3 ● ☐ CT-3.4 ● ☐ CT-60 ● ☐ CT-225 ● ☐ CT-227 ● ☐

Other *(identify)*: _____ ● ☐

4 If you are claiming tax credits, enter the number of tax credit forms filed with this return. Where multiple forms are filed for the same credit, count **each** form filed. ..... ● **4** ☐

5 If you filed federal Form 1120F and you have effectively connected income (ECI), mark an ***X*** in the box ..... ● **5** ☐

6 If you are a foreign corporation calculating your tax taking into account **only** your distributive shares from **multiple** limited partnerships, mark an ***X*** in the box and file Form CT-60 ..... ● ☐

7 **Revoking a commonly owned group election** *(only applies in the first year you revoke the election)* **–** If you were previously the designated agent of a combined group (and are no longer filing as part of a combined group) that made the commonly owned group election and have completed seven tax years (not including short tax years) under it, but now want to **revoke** the election, mark an ***X*** in the box ..... ● ☐

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Part 2 – Calculation of balance due or overpayment

Largest of three tax bases, minus credits

1a	Business income base tax *(from Part 3, line 20)*	1a	
1b	Capital base tax *(from Part 4, line 15; see instructions)*	1b	
1c	Fixed dollar minimum tax *(see instr)* New York receipts	1c	
2	Tax due *(enter the amount from line 1a, 1b, or 1c, whichever is largest; see instructions)*		2
3	Tax credits used *(from Part 7, line 2; see instructions)*		3
4	Tax due after credits *(subtract line 3 from line 2; if line 3 is more than line 2, enter 0)*		4

Penalties and interest

5	Estimated tax penalty *(see instructions; if Form CT-222 is attached, mark an X in the box)* ☐	5	
6	Interest on late payment *(see instructions)*	6	
7	Late filing and late payment penalties *(see instructions)*	7	
8	Total penalties and interest *(add lines 5, 6, and 7)*		8

Voluntary gifts/contributions

9	Total voluntary gifts/contributions *(from Form CT-227, Part 2, line 1)*		9
10	Total amount due *(add lines 4, 8, and 9)*		10

Prepayments

11	Mandatory first installment (MFI) from Form CT-300 *(see instr.)*	11	
12	Second installment *(from Form CT-400)*	12	
13	Third installment *(from Form CT-400)*	13	
14	Fourth installment *(from Form CT-400)*	14	
15	Payment with extension request *(from Form CT-5, line 5)*	15	
16	Overpayment credited from prior years *(see instr.)* Period	16	
17	Overpayment credited from CT-3-M Period	17	
18	Total prepayments *(add lines 11 through 17; see instructions)*		18

Payment due or overpayment to be credited/refunded *(see instructions)*

19a	Underpayment		19a
19b	Additional amount for 2026 MFI		19b
19c	Balance due		19c
20a	Excess prepayments		20a
20b	Amount previously credited to 2026 MFI		20b
20c	Overpayment		20c
21	Amount of overpayment to be credited to next period		21
22	Balance of overpayment available *(subtract line 21 from line 20c)*		22
23	Amount of overpayment to be credited to Form CT-3-M		23
24	Balance of overpayment to be refunded *(subtract line 23 from line 22)*		24
25	Unused tax credits to be refunded		25
26	Refundable tax credits to be credited as an overpayment to next year's tax return		26

Part 3 – Calculation of tax on business income base *(see instructions)*

1	Federal taxable income (FTI) before net operating loss (NOL) and special deductions *(see instructions)*	1
2	Additions to FTI *(from Form CT-225, line 5)*	2
3	Add lines 1 and 2	3
4	Subtractions from FTI *(from Form CT-225, line 10)*	4
5	Subtract line 4 from line 3	5
6	Subtraction modification for qualified banks *(from Form CT-3.2, Schedule A, line 1)*	6
7	Entire net income (ENI) *(subtract line 6 from line 5)*	7
8	Investment and other exempt income *(from Form CT-3.1, Schedule D, line 1; see instructions)*	8
9	Subtract line 8 from line 7	9
10	Excess interest deductions attributable to investment income, investment capital, and other exempt income *(from Form CT-3.1, Schedule D, line 2)*	10
11	Business income *(add lines 9 and 10)*	11
12	Addback of income previously reported as investment income *(from Form CT-3.1, Schedule F, line 6; if zero, enter 0; see instructions)*	12
13	Business income after addback *(add lines 11 and 12)*	13
14	Business apportionment factor *(from Part 6, line 58)*	14
15	Apportioned business income after addback *(multiply line 13 by line 14)*	15
16	Prior net operating loss conversion subtraction *(from Form CT-3.3, Schedule C, line 4)*	16
17	Subtract line 16 from line 15	17
18	NOL deduction *(from Form CT-3.4, line 6)*	18
19	Business income base *(subtract line 18 from line 17)*	19
20	Business income base tax *(multiply line 19 by the appropriate business income tax rate from the Tax rates schedule in Form CT-3-I; enter here and on Part 2, line 1a; see instructions)*	20

Note: If you make any entry on line 2, 4, 6, 8, 10, 12, 16, or 18, you **must** complete and file the appropriate attachment form, or any tax benefit claimed may be disallowed, or there may be a delay in receiving such benefit. In addition, all amounts entered on these lines must be entered as positive numbers.

Part 4 – Calculation of tax on capital base *(see instructions)*

		A Beginning of year	B End of year	C Average value
1 Total assets from federal return	1			
2 Real property and marketable securities included on line 1	2			
3 Subtract line 2 from line 1	3			
4 Real property and marketable securities at fair market value	4			
5 Adjusted total assets *(add lines 3 and 4)*	5			
6 Total liabilities	6			
7 Total net assets *(subtract line 6, column C, from line 5, column C)*	7			
8 Investment capital *(from Part 5, line 19; if zero or less, enter **0**)*	8			
9 Business capital *(subtract line 8 from line 7)*	9			
10 Addback of capital previously reported as investment capital *(from Part 5, line 20, column C; if zero or less, enter **0**)*	10			
11 Total business capital *(add lines 9 and 10)*	11			
12 Business apportionment factor *(from Part 6, line 58)*	12			
13 Apportioned business capital *(multiply line 11 by line 12)*	13			
14				
15 Capital base tax *(multiply line 13 by the appropriate capital base tax rate from the* Tax rates schedule *in Form CT-3-I; enter here and on Part 2, line 1b)*	15			

Part 5 – Calculation of investment capital for the current tax year *(see instructions)*

		A Average fair market value	B Liabilities attributable to column A amount	C Net average value *(column A - column B)*
16 Total capital that generates income claimed to not be taxable by New York under the U.S. Constitution *(from Form CT-3.1, Schedule E, line 1)*	16			
17 Total of stocks **actually** held for more than one year *(from Form CT-3.1, Schedule E, line 2)*	17			
18 Total of stocks **presumed** held for more than one year *(from Form CT-3.1, Schedule E, line 3)*	18			
19 Total investment capital for the current year *(Add column C lines 16, 17, and 18; enter the result here and on Part 4, line 8. If zero or less, enter **0**.)*	19			

Addback of capital previously reported as investment capital

		A Average fair market value as previously reported	B Liabilities attributable to column A amount as previously reported	C Net average value as previously reported *(column A - column B)*
20 Total of stocks previously presumed held for more than one year, but did **not** meet the holding period *(from Form CT-3.1, Schedule F, line 1; enter here and on Part 4, line 10)*	20			

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Part 6 – Calculation of business apportionment factor *(see instructions)*

Mark an ***X*** in this box only if you have **no receipts** required to be included in the denominator of the apportionment factor *(see instr.)* .. ● ☐

		A – New York State	B – Everywhere
Section 210-A.2			
1 Sales of tangible personal property ●	**1**		
2 Sales of electricity ●	**2**		
3 Net gains from sales of real property ●	**3**		
Section 210-A.3			
4 Rentals of real and tangible personal property ●	**4**		
5 Royalties from patents, copyrights, trademarks, and similar intangible personal property ●	**5**		
6 Sales of rights for certain closed-circuit and cable TV transmissions of an event ●	**6**		
Section 210-A.4			
7 Sale, licensing, rental, or granting access to digital products and digital services ●	**7**		

Section 210-A.5(a)(1) – Fixed percentage method for qualified financial instruments (QFIs)

8 To make this irrevocable election, mark an ***X*** in the box *(see instructions)* ● **8** ☐

Section 210-A.5(a)(2) – Mark an ***X*** in each box that is applicable *(see line 8 instructions)*

Section 210-A.5(a)(2)(A)			
9 Interest from loans secured by real property ●	**9**		
10 Net gains from sales of loans secured by real property ●	**10**		
11 Interest from loans **not** secured by real property (QFI ● ☐) ●	**11**		
12 Net gains from sales of loans **not** secured by real property (QFI ● ☐) ●	**12**		
Section 210-A.5(a)(2)(B) (QFI ● ☐)			
13 Interest from federal debt ●	**13**		
14			
15 Interest from NYS and its political subdivisions debt ●	**15**		
16 Net gains from federal, NYS, and NYS political subdivisions debt ●	**16**		
17 Interest from other states and their political subdivisions debt ●	**17**		
18 Net gains from other states and their political subdivisions debt ●	**18**		
Section 210-A.5(a)(2)(C) (QFI ● ☐)			
19 Interest from asset-backed securities and other government agency debt ●	**19**		
20 Net gains from government agency debt or asset-backed securities sold through an exchange ●	**20**		
21 Net gains from all other asset-backed securities ●	**21**		
Section 210-A.5(a)(2)(D) (QFI ● ☐)			
22 Interest from corporate bonds ●	**22**		
23 Net gains from corporate bonds sold through broker/dealer or licensed exchange ●	**23**		
24 Net gains from other corporate bonds ●	**24**		
Section 210-A.5(a)(2)(E)			
25 Net interest from reverse repurchase and securities borrowing agreements ●	**25**		
Section 210-A.5(a)(2)(F)			
26 Net interest from federal funds ●	**26**		
Section 210-A.5(a)(2)(I) (QFI ● ☐)			
27 Net income from sales of commodities ●	**27**		
Section 210-A.5(a)(2)(J) (QFI ● ☐)			
28 Marked to market net gains ●	**28**		
Section 210-A.5(a)(2)(H) (QFI ● ☐) **210-A.5(a)(2)(G)** (QFI ● ☐)			
29 Interest from other financial instruments ●	**29**		
30 Net gains and other income from other financial instruments ●	**30**		

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Part 6 – Calculation of business apportionment factor *(continued)*

		A – New York State	B – Everywhere
Section 210-A.5(b)			
31 Brokerage commissions	31		
32 Margin interest earned on behalf of brokerage accounts	32		
33 Fees for advisory services for underwriting or management of underwriting	33		
34 Receipts from primary spread of selling concessions	34		
35 Receipts from account maintenance fees	35		
36 Fees for management or advisory services	36		
37 Interest from an affiliated corporation	37		
Section 210-A.5(c)			
38 Interest, fees, and penalties from credit cards	38		
39 Service charges and fees from credit cards	39		
40 Receipts from merchant discounts	40		
41 Receipts from credit card authorizations and settlement processing	41		
42 Other credit card processing receipts	42		
Section 210-A.5(d)			
43 Receipts from certain services to regulated investment companies	43		
Section 210-A.5-a			
44 Global intangible low-taxed income	44	0 00	
Section 210-A.6			
45 Receipts from railroad, trucking, and omnibus business	45		
Section 210-A.6-a			
46 Receipts from the operation of vessels	46		
Section 210-A.7			
47 Receipts from air freight forwarding	47		
48 Receipts from other aviation services	48		
Section 210-A.8			
49 Receipts from advertising in newspapers or periodicals	49		
50 Receipts from advertising on other physical media	50		
51 Receipts from advertising on television or radio	51		
52 Receipts from advertising via internet	52		
53 Receipts from advertising or marketing services	53		
Section 210-A.9			
54 Receipts from transportation or transmission of gas through pipes	54		
Section 210-A.10			
55 Receipts from other services/activities not specified	55		
Section 210-A.11			
56 Discretionary adjustments	56		
Total receipts			
57 Add lines 1 through 56 in columns A and B	57		

Calculation of business apportionment factor

58 New York State business apportionment factor *(divide line 57, column A by line 57, column B and enter the resulting decimal here; round to the sixth decimal place after the decimal point; see instructions)* **58**

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Part 7 – Summary of tax credits claimed

1 Have you been convicted of an offense, or are you an owner of an entity convicted of an offense, defined in New York State Penal Law, Article 200 or 496, or § 195.20? *(see Form CT-1; mark an **X** in one box)* ..... **1** Yes ☐ No ☐

Enter in the appropriate box below the amount of each tax credit **used** to reduce the tax due shown on Part 2, line 2, and file the corresponding properly completed claim form. The amount of credit to enter is calculated on each credit form and carried to this section.

CT-37		CT-607		CT-651	
CT-40		CT-611		CT-652	
CT-41		CT-611.1		CT-654	
CT-43		CT-611.2		CT-660	
CT-44		CT-612		CT-661	
CT-46		CT-613		CT-663	
CT-47		CT-631		CT-665	
CT-236		CT-633		CT-667	
CT-238		CT-634		CT-668	
CT-239		CT-635		CT-669	
CT-241		CT-636		DTF-621	
CT-242		CT-637		DTF-622	
CT-246		CT-638		DTF-624	
CT-248		CT-640		Other credits	
CT-249		CT-641			
CT-250		CT-642			
CT-261		CT-643			
CT-501		CT-644			
CT-601		CT-645			
CT-602		CT-646			
CT-603		CT-647			
CT-604		CT-648			
CT-605		CT-649			
CT-606		CT-650			

2 Total tax credits claimed above *(enter here and on Part 2, line 3; file appropriate form for each credit claimed)* **2**

3 Total tax credits claimed that are refund eligible *(see instructions)* **3**

4a If you claimed the qualified empire zone enterprise (QEZE) tax reduction credit and you had a 100% zone allocation factor, mark an ***X*** in the box ..... **4a** ☐

4b If you claimed the START-UP NY tax elimination credit, and you had a 100% area allocation factor, mark an ***X*** in the box ..... **4b** ☐

4c If you claimed the START-UP NY telecommunications service excise tax credit and you had a 100% area allocation factor, mark an ***X*** in the box ..... **4c** ☐

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